

SAGI RAMA KRISHNAM RAJU ENGINEERING COLLEGE (AUTONOMOUS)

(Approved by AICTE, New Delhi, Affiliated to JNTUK, Kakinada)

Accredited by NAAC with A+ Grade, Accredited by NBA (UG: Civil, CSE, ECE, EEE, IT & ME)

Recognised as Scientific and Industrial Research Organisation

SRKR Marg, CHINA AMIRAM, BHIMAVARAM-534204, W.G.Dt., A.P., India.



INTELLECTUAL PROPERTY RIGHTS (IPR) POLICY AND GUIDELINES

2026

SRKREC Intellectual Property Rights (IPR) Policy

Intellectual Property (IP) refers to original creations of the human mind, such as inventions, research findings, literary and artistic works, designs, logos, names, and other creative works. These creations can be protected through Intellectual Property Rights (IPRs), such as patents, copyrights, trademarks, industrial designs, and geographical indications.

An IPR Policy provides a clear framework for creating, protecting, owning, managing, and commercializing intellectual property generated by the Institute. It encourages faculty, researchers, students, and staff to develop innovative ideas and convert them into useful technologies, products, processes, and services for the benefit of society and industry.

1. Objectives

- i. Promote innovation and creativity by encouraging new ideas, research, inventions, and technological developments.
- ii. Protect intellectual property created by faculty, researchers, students, staff, and other members of the Institute.
- iii. Provide clear guidelines for the creation, ownership, protection, management, and commercialization of intellectual property.
- iv. Encourage industry collaboration by providing clarity on IP ownership, technology transfer, licensing, and commercialization.
- v. Support knowledge transfer by converting research outcomes and innovative ideas into useful products, processes, and services.
- vi. Promote commercialization of research for the benefit of the Institute, industry, and society.
- vii. Generate revenue through licensing, technology transfer, and commercialization of Institute-owned intellectual property.
- viii. Recognize and reward innovators by providing appropriate benefits and incentives to faculty, researchers, students, and staff who contribute to the creation and commercialization of IP.
- ix. Strengthen the Institute's innovation ecosystem by promoting a culture of research, entrepreneurship, collaboration, and technology development.

2. Types of IPR

- i. Patent: A patent provides exclusive rights for a new invention, product, or process that offers a new technical solution or an improved way of doing something.
- ii. Copyright: Copyright protects original creative works such as books, research papers, software, music, artwork, photographs, films, videos, sound recordings, and other literary or artistic works.
- iii. Trademark/Service Mark: A trademark or service mark is a name, logo, symbol, word, design, shape, or combination of colours that distinguishes the goods or services of one organization from those of others.

- iv. **Industrial Design:** Industrial design protects the visual appearance of a product, including its shape, configuration, pattern, design, ornamentation, or combination of colours, as seen in the finished product.
- v. **Integrated Circuit (IC) Layout Design:** IC layout design protects the original arrangement of transistors, circuitry elements, and their connections used in a semiconductor integrated circuit.
- vi. **New Plant Variety:** A new plant variety refers to a plant variety that is new, distinct, uniform, and stable in its characteristics and meets the applicable legal requirements for protection.
- vii. **Biotechnology Inventions:** Biotechnology inventions include innovations involving biological materials and processes, such as recombinant products, microorganisms, vectors, genes, and nucleotide sequences.
- viii. **Traditional Knowledge:** Traditional knowledge refers to knowledge, practices, and skills developed by indigenous or local communities, particularly in areas such as agriculture, food, medicine, and the use of natural resources, and passed from one generation to another.
- ix. **Geographical Indication (GI):** A geographical indication identifies goods that originate from a particular geographical region and whose quality, reputation, or other characteristics are essentially linked to that place of origin.

3. IPR Filing process

- i. Inventor(s) has / have to submit Invention Disclosure form / Copyright Disclosure Form to SRKREC IPR Cell after completing and ensuring the prior-art search in free database.
- ii. SRKREC IPR Cell will call for presentation before the Evaluation Committee.
- iii. After evaluation, the qualified application will be considered for IPR filing through SRKREC IPR Cell.

4. IPR Fee

SRKREC shall provide financial support for the filing and grant of Intellectual Property Rights as follows:

- i. When SRKREC acts as the sole applicant with faculty or students as inventors, the IPR cell manages all process steps and covers all charges based on the potential of the invention/idea.
- ii. When SRKREC is a co-applicant alongside faculty or students, a grant incentive of Rs. 30000 is provided as incentive excluding filing charges reimbursed under AICTE Kapila scheme. The amount includes search, documentation, FER answering, Hearing charges and patent agent fee if taken.
- iii. Renewal fee up to specific term/years should also be considered when done
- iv. If the IP is developed through a sponsored or funded project, the IPR filing cost shall be shared equally between SRKREC and the sponsoring/funding agency, or as mutually agreed upon in accordance with the terms of the funding agency.

- v. If the sponsoring/funding agency does not agree to share the IPR filing and maintenance costs, SRKREC may, at its discretion: continue the patent protection process by bearing the applicable costs for the required term; or withdraw/abandon the patent application.

5. Revenue Sharing

Revenue accruing out of the commercial exploitation of IP (i.e. the technology transfer fee and subsequent royalty payments) would be shared appropriately between the inventor(s) and the SRKREC. Currently this ratio is 70:30 [Inventor(s): College].

6. Ownership of IPR

- i. The ownership rights in scholarly and academic works generated utilising resources of the Institute, including articles, student projects, lecture notes, audio or visual aids for giving lectures shall ordinarily be vested with the Author(s).
- ii. The ownership rights in any dissertations and/or thesis shall be owned by the Institute.
- iii. The ownership rights in lecture videos or Massive Open Online Courses (MOOCs), films, plays, and musical works, institutional materials including, but not limited to, course syllabus, curriculum, exam questions, exam instructions, and papers/ reports specifically commissioned by the Institute, shall be owned by the Institute. The Moral Rights shall continue to vest with the author(s) wherever applicable.
- iv. Authors of the course material/syllabus, curriculum, exam question etc. may be permitted to use their content for academic purposes.
- v. As the exception, SRKREC shall not claim ownership of copyright on books and publications authored by the person(s) employed on regular / contractual basis for any of the academic programmes.
- vi. SRKREC shall be the owner of copyright on proceedings (hard copy or soft version) of International or National Conferences / Seminars / Technical Gatherings organized by SRKREC.

7. Dealing with IPR owned by Third Parties

- i. Use of technology protected by IPRs like Patents and Designs
- ii. Under such circumstances that Researchers, students or faculty, may have to use diverse technology/ design/ software, as part of their Research, due care and attention must be given, for not infringing the IP rights of third parties. Some of the licenses may have restrictions with regard to kind of usages permitted. All necessary permissions required must be obtained from IP owners prior to engaging in any use which moves beyond the terms of license or as permitted under the relevant statute(s) in India.
- iii. Use of copyrighted materials
- iv. Whenever researchers, students or faculty use copyrighted material for teaching or research purposes, they must ensure that the use is within the permission obtained from the concerned Copyright holder(s) or is within the boundaries of exceptions provided under the Indian Copyright law, as amended from time to time.

8. Disclosure and Confidentiality

- i. All students, faculty, staff, members of the Institute and any other personnel not part of the Institute but associated/engaged with the Institute 18 directly or indirectly shall maintain confidentiality of all information, whether written, electronic or other form, including but not limited to all data, information, report, survey, designs, instructions, student records, employees, pricing data, vendor lists, marketing or strategic plans, Intellectual Property whether existing already or created or otherwise, forecasts, studies, lists, notes, drawing, samples including any portions thereof (collectively referred as “Confidential Information”), till such time it is made available in the public domain.
- ii. Any Confidential Information shall be used only for purpose of such activities. It is recommended that a proper non-disclosure agreement should be executed prior to engaging in any disclosure of Confidential Information to any third party.
- iii. Notwithstanding the above, any information which falls within one of the following shall not be treated as Confidential Information:
 - a. already under public domain;
 - b. is required by law or regulation to be disclosed;
 - c. is independently developed; and
 - d. is received from a third party having no obligations of confidentiality to the disclosing party.

9. Publications

- i. The Researcher may publish material relating to the Research, as per the prevailing norms of the Institute. The Institute may retain the right to require exclusion of certain portions from the information being published.
- ii. The use of name, logo and/or official emblem/logo of the Institute shall be in accordance with SRKREC Brand Policy.

10. Dispute Resolution

- i. The Principal may appoint a committee of experts to address the concerns of the aggrieved person(s) and all disputes there under shall be dealt with by this committee. The decision taken by this committee should be final and binding on all concerned parties.
- ii. If aggrieved person(s) is not satisfied with the verdict/ decision of the committee, Parties shall refer such claim, dispute or difference to the arbitration of a sole arbitrator to be jointly appointed by the Parties. All proceedings in any such arbitration shall be conducted in English. The venue of such arbitration shall be Vijayawada, India and shall be in accordance with the provisions of the Arbitration and Conciliation Act, 1996 as applicable from time to time.

- iii. Any dispute which cannot be resolved through arbitration shall be subject to exclusive jurisdiction of courts of Vijayawada and the same shall be governed by the appropriate laws of India.

11. Governing Regulations

Intellectual properties rights in India is governed under the following

- a. The Patents Act, 1970 (amended in 2005)
- b. The Copyright Act, 1957
- c. The Researchers, students or faculty shall follow the provisions of said Acts and relevant notifications/ orders issued by the concerned department.

Annexure

Sl. No.	Type of IP	Relevant Act	Section
1	Patent	The Patents Act, 1970	Section 2(m)
2	Copyright	The Copyright Act, 1957	Section 2(d)
3	Moral Rights	The Copyright Act, 1957	Section 57
4	Trademark	The Trade Marks Act, 1999	Section 2(1)(zb)
5	Industrial Design	The Designs Act, 2000	Section 2(d)
6	Semiconductor Integrated Circuit Layout Design	The Semiconductor Integrated Circuits Layout-Design Act, 2000	Section 2(r)
7	Plant Variety	The Protection of Plant Varieties and Farmers' Rights Act, 2001	—
8	Geographical Indication (GI)	The Geographical Indications of Goods Act, 1999	Section 2(e)